

		Defendant is ordered to serve and file an undertaking in the amount of \$100,000 within 5 days. (Code Civ. Proc., § 529, subd. (a).) Defendant shall give notice in accordance with the Code.
54	<i>Lewandowski vs. Memorial Care Saddleback Med. Center</i>	Defendant Kenneth Lynn, M.D.'s unopposed motion for good faith settlement determination under Code of Civil Procedure section 877.6 for his settlement with plaintiff Thomas Lewandowski is GRANTED. [ROA #287.] <i>Legal Standard</i> Section 877.6 applies to a settlement between a plaintiff and an alleged tortfeasor or obligor under a contract in an action in which the tortfeasor is an alleged joint tortfeasor with another or the obligor is a co-obligor under the same contract with another. Cal. Code Civ. Proc. § 877.6(a)(1). Section 877.6 allows a settling defendant to obtain a determination that his settlement is in good faith, and thus to bar action for equitable contribution or equitable indemnity by the joint tortfeasor(s) or co-obligor(s). Code Civ. Proc. § 877.6(c). The word alleged means the defendant need not be found liable; the plaintiff's allegations are sufficient. (<i>Hartford Acc. & Indem. Co. v. Superior Court</i> (1995) 37 Cal.App.4th 1174, 1179.) A written settlement agreement need not be executed and presented with the motion for good faith settlement determination so long as the court and all the parties are timely advised of the important terms of the settlement. (<i>Alcal Roofing and Insulation v. Superior Court</i> (1992) 8 Cal.App.4th 1121, 1127.)